had indeed consumed illicit drugs before charging him with consumption under the Act. The NCB team did not videograph the seizures they had made, either in Merchant's case or in the case of the others who had been arrested, although this was mandatory under the rules.

With Merchant's statement having knocked the bottom out of the NCB's case against Aryan, Wankhede and his team began searching for other evidence to implicate him and took possession of his cellphone. Singh says, "It is strange that in spite of a clear-cut denial by Arbaaz regarding the involvement of Aryan in the procurement and possession of drugs, the investigating officer started looking at the WhatsApp chats of Aryan without even formally seizing the mobile phone, as is the procedure." The SIT says Wankhede and his team went about summoning those named in the chats for questioning, when these chats actually have no evidentiary value in courts unless they can be corroborated with primary evidence. The SIT concluded that there was no evidence to file a complaint against Aryan Khan and dropped his name from the chargesheet. It also dropped the names of the five others who were earlier accused under the NDPS Act on similar grounds.

Wankhede would go on to suffer a double blow. Not only was he hauled up for conducting a shoddy investigation in the Aryan Khan case but the Special Enquiry Team (SET) set up to investigate charges of extortion and corruption against him also expressed concern over some of his dealings. While there is no evidence that he tried to extort money from Shah Rukh as has been alleged, the SET raised disturbing questions about his possessing assets that apparently did not square with his known sources of income (see *The Hunter Becomes the Hunted*). Before the Aryan Khan case, Wankhede was regarded as one of NCB's brightest officers. He was pushy, hardworking and had raised the bureau's profile in Mumbai after he took over two years ago with his tough stand against drug traffickers and peddlers. In the midst of the Aryan Khan controversy, Wankhede had applied for a permanent posting to the NCB, and the UPSC had cleared his request. But with adverse reports pouring in not only over the lapses in the *Cordelia* case but also raising questions about his personal integrity, the Modi government transferred him back to a post in Chennai with his parent



"Drug abuse is a chronic problem and relapse is the rule rather than exception. Young people need help, not getting put back in jail"

DR PRATIMA MURTHY
NIMHANS, Bengaluru



IN THE DRAGNET
Rhea Chakraborty at the NCB's Mumbai office, Sept. 2020

DANGEROUS HIGH

Cases under the Narcotic Drugs and Psychotropic Substances Act, 1985



